

		reasonable fees, the work performed should be more efficient. As noted, Plaintiff has not provided any breakdown which professionals performed what number of hours of this work at what hourly rate. Rather, Plaintiff's counsel simply declares 53.1 hours were spent at \$20,940. The court finds 35 hours to be a more reasonable amount and the court values those hours at \$12,500. That is a reduction of \$8,440. The court otherwise finds the balance of the hours and fees requested to be reasonable. When this \$8,440 is deducted from the total of 36,179 that is sought, the result is \$27,739. Based on the foregoing, the motion is GRANTED and Plaintiff is awarded a total of \$27,739 in attorney fees against Defendants. Plaintiff's counsel is ordered to give notice of this ruling.
11.	<i>Irvine Spectrum Center LLC vs. Scan Fitness, LLC</i> <i>2023-01349243</i>	Before the court is the unopposed motion for award of contractual attorney fees filed by plaintiff Irvine Spectrum Center LLC (Plaintiff) against defendant Scan Fitness LLC dba Stride (Defendant). As more fully set further below, the motion is GRANTED and Plaintiff is awarded the requested amount of \$16,472.50. Contractual attorney fees are recoverable as costs to the prevailing party. (Code Civ. Proc., § 1033.5, subd. (a)(10)(A); Civ. Code, § 1717, subd. (a), (b).) Having prevailed at trial on the parties' written lease and amendment, the court finds Plaintiff is the prevailing party entitled to reasonable attorney fees pursuant to the attorney fee provision therein. (Declaration of Ernie Zachary Park (Park Decl.), Exh. 3 at § VI.B; see also Exh. 1.) Generally, courts employ the lodestar method to determine if attorney fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (<i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1242.) The party seeking attorney fees is not entitled to all hours they claim in an attorney fee request and must prove that the hours sought are reasonable and necessary. (<i>Concepcion v. Amscan Holdings, Inc.</i> (2014) 223 Cal.App.4th 1309, 1320.) The court finds Plaintiff has shown the hourly rate sought at \$275 and number of hours at 58.9 hours are reasonable. (Park Decl. ¶¶ 12, 16, Exh. 5.) Accordingly, the court awards the amount requested at \$16,472.50.

		Based on the foregoing, the motion is GRANTED, and Plaintiff is awarded \$16,472.50 in attorney fees against Defendant. Plaintiff's counsel is ordered to give notice of this ruling.
12.	<i>EJVE Limited vs. Richard Finger</i> 2024-01435614	Before the court are the following two motions filed by plaintiff and judgment creditor EJVE Limited (Creditor): (1) motion for assignment order; and (2) motion for charging order. As more fully set forth below, the motions are DENIED WITHOUT PREJUDICE. <u>Motion No. 1: Motion for Assignment Order</u> Creditor moves for an order assigning to Creditor, to the extent necessary to satisfy the judgment entered in this case, the rights of defendant Richard Finger (Debtor) and the community property interests of his alleged spouse Ashley Finger (Ms. Finger) to payments due or to become due from certain sources identified in the notice of motion, pursuant to Code of Civil Procedure section 708.510. As an initial matter, Creditor fails to offer sufficient evidence establishing Debtor and Ms. Finger are married or when they were married. The only evidence Creditor submits to establish the marriage is a copy of what appears to be one page of a rental application which Creditor's counsel, Mr. Sheldon, states was obtained from a subpoena issued to Debtor's landlord. (See Sheldon Decl., ¶ 10 and Ex. H.) Counsel may not properly authenticate that document or establish the necessary foundation. Moreover, the application identifies an "Ashley Finger" under emergency contacts and states the relationship as "wife." (Ex. H.) This unsigned application alone is insufficient to establish Ms. Finger is the spouse of Debtor. It is also unclear whether the "Ashley Finger" identified in the rental application is the same Ashley Finger identified in the Statements of Information produced by Creditor. Creditor offers no discussion showing the individuals are one and the same. Even assuming Ms. Finger and Debtor are married and Ms. Finger is the individual identified in the Statements of Information, there is no argument or evidence showing how Ms. Finger acquired her membership interest in the entities, when she acquired the interests, or when Debtor and Ms. Finger were married. (See Fam. Code, § 760 [community property is all property acquired by a married person during the marriage while domiciled in this state]; § 770 [Property acquired before marriage is the acquiring